

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jonathan Jannucci	Team: Team # 5	CCRB Case #: 200509945	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 08/23/2005 7:23 PM	Location of Incident: Foster Avenue between East 28 and East 29th Street	18 Mo. SOL 2/23/2007	Precinct: 67
Date/Time CV Reported Tue, 08/23/2005 7:23 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/25/2005 4:11 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Erik Worobey	10614	932229	067 PCT
2. POM Michael Rivera	19144	927423	067 PCT
3. POM Fakrul Islam	27327	932815	067 PCT
4. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Robert Ward	01618	911838	067 PCT
2. POM Mark Vazquez	29928	933447	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Erik Worobey	Abuse: Officer Erik Worobey stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Exonerated
B . POM Michael Rivera	Abuse: Officer Michael Rivera stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Exonerated
C . POM Fakrul Islam	Abuse: Officer Fakrul Islam stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.	C . Exonerated
D . POM Erik Worobey	Abuse: Officer Erik Worobey frisked § 87(2)(b)	D . Exonerated
E . POM Erik Worobey	Force: Officer Erik Worobey used physical force against § 87(2)(b)	E . Exonerated
F . POM Fakrul Islam	Force: Officer Fakrul Islam used physical force against § 87(2)(b)	F . Exonerated
G . POM Michael Rivera	Force: Officer Michael Rivera used physical force against § 87(2)(b)	G . Exonerated
H . Officers	Abuse: Officers searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.	H . Unfounded

Synopsis

On August 23, 2005 at approximately 7:20 PM, § 87(2)(b) was driving his car on Foster Avenue in Brooklyn when he was pulled over by a police van (allegations A, B, C). § 87(2)(b) was sitting in the front passenger seat of § 87(2)(b)'s vehicle. According to § 87(2)(b) and § 87(2)(b), six officers exited the van and approached their vehicle. The investigation could only identify three officers who were in the van at the time. Those officers were identified as Officer Eric Worobey, Officer Michael Rivera, and Officer Fakrul Islam. Officer Worobey approached the driver's side window of the car and after asking § 87(2)(b) for his license and registration, instructed him to step out of the vehicle. Officer Worobey immediately frisked § 87(2)(b) and recovered a knife that was clipped to his waistband (allegation D). Officer Worobey then instructed § 87(2)(b) to walk towards the back of the car. As § 87(2)(b) was walking, Officer Worobey grabbed his arms and pushed him against the trunk of the car (allegation E). Officer Rivera and Officer Islam assisted Officer Worobey in placing § 87(2)(b) in handcuffs (allegations F and G). § 87(2)(b) exited the vehicle and called 911. Unidentified officers then searched § 87(2)(b)'s car and found a plastic bag of marijuana that was located in § 87(2)(b)'s pocketbook, which was on the front passenger's seat (allegation H). § 87(2)(b) was then placed under arrest. Sgt. Robert Ward and Officer Mark Vazquez arrived on the scene to verify the arrests and § 87(2)(b) and § 87(2)(b) were then taken to the 67th Precinct. Officer Rivera drove § 87(2)(b)'s car to the precinct.

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) a § 87(2)(b)-old § 87(2)(b), filed her complaint with IAB on August 23, 2005. The complaint was referred to the CCRB on August 25, 2005. § 87(2)(b) provided a telephone statement on September 15, 2005 and was interviewed at the CCRB on September 21, 2005 (encl. 8 and encl. 9a-e). § 87(2)(g) According to her 911 call, § 87(2)(b) stated that officers were kicking § 87(2)(b) and roughing him up for no reason (encl. 6a-c).

On August 23, 2005 at approximately 7:20 PM, § 87(2)(b) was riding in the passenger seat of her boyfriend's car. § 87(2)(b)'s boyfriend, § 87(2)(b) was driving the car on Foster Avenue between 28th Street and 29th Street in Brooklyn. § 87(2)(b) noticed a marked police van following close behind their vehicle. Although the van did not have its siren or overhead lights on, § 87(2)(b) told § 87(2)(b) to pull the car over. When § 87(2)(b) pulled over, six police officers exited the van. § 87(2)(b) could not provide the names of any of these officers and could only provide general descriptions. Three of the officers were identified through investigation as Officer Worobey, Officer Rivera, and Officer Islam. The officers were identified from the arrest reports and the 67th PCT roll call. Officer Worobey approached the driver's side window and asked § 87(2)(b) for his license and registration. § 87(2)(b) handed the officer his license and registration and asked why he was pulled over. § 87(2)(b) was "agitated" and was using a "slightly louder" than usual voice.

Officer Worobey handed § 87(2)(b) s license over to another officer and instructed § 87(2)(b) to step out of the vehicle. § 87(2)(b) complied with the order and began to exit the car. As § 87(2)(b) was stepping out of the car, Officer Worobey grabbed § 87(2)(b) and pushed him towards the back of the car. Officer Worobey grabbed § 87(2)(b) s wrist and placed his hand on § 87(2)(b) s back. Officer Worobey then slammed § 87(2)(b) against the trunk of the car. § 87(2)(b) immediately exited the vehicle. § 87(2)(b) was physically struggling with the officer. Officer Rivera and Officer Islam attempted to “control and

restrain” § 87(2)(b) by holding his wrists and arms. § 87(2)(b) asked the officers, “What is this for? Why are you doing this?” An officer stated, “You have a deadly weapon on you, and we’re trying to restrain you because you have a deadly weapon.”

While the officers were attempting to restrain § 87(2)(b), § 87(2)(b) called 911 because she thought that the police officers’ actions were unnecessary. Two unidentified officers began searching the vehicle. § 87(2)(b) “glanced” at the officers and “guessed” that they searched the back seats, the floor underneath the front seats, the glove compartment, and the center console of the car. § 87(2)(b) believes that the officers searched the backseat and the center console because she later observed that the armrest compartment was opened and that the backseat was pulled up.

The officers searched the car for approximately five or ten minutes and found marijuana in § 87(2)(b)’s pocketbook, which was located on the front passenger seat of the vehicle. After the officers found the marijuana, an officer approached § 87(2)(b) and placed her in handcuffs. By this time, § 87(2)(b) was also in handcuffs. The officers placed § 87(2)(b) and § 87(2)(b) in the police van and brought them to the 67th Precinct. An officer drove § 87(2)(b)’s car to the precinct. § 87(2)(b) was arrested § 87(2)(a) 160.50. § 87(2)(b) stated that she was not screaming during the incident, but rather she was “talking loudly.”

Results of Investigation

Victim testimony:

§ 87(2)(b), § 87(2)(b), § 87(2)(b), was interviewed at the CCRB on September 21, 2005 (encl. 11a-c). § 87(2)(g)

§ 87(2)(b) was driving his car when he passed a marked police van on Clarendon Road and Rogers Avenue. As he continued to drive onto Foster Avenue, the van drove behind him and put on its overhead lights. § 87(2)(b) heard a voice over the loud speaker, instructing him to pull over. § 87(2)(b) immediately stopped his car on the corner of Foster Avenue and East 28th Street. When Officer Worobey asked § 87(2)(b) for his license and registration, § 87(2)(b) reached into the center console to retrieve his wallet and other documentation. § 87(2)(b) began shuffling some papers on his lap looking for his license. As he was still looking for his license, Officer Worobey instructed him to step out of the car. § 87(2)(b) stepped out of the car and Officer Worobey immediately frisked him and found a knife that was clipped onto the waistband of his jeans. The knife was inside his pants, but the clip was exposed on the outside. § 87(2)(b) stated that the officer probably saw the knife when he was shuffling the papers on his lap. Officer Worobey removed the knife, and told him to move to the back of the car.

As § 87(2)(b) began to walk towards the back of the car, Officer Worobey grabbed his arms and pushed him against the trunk of the car. § 87(2)(b) placed his hands on the trunk and leaned against the car. An officer then pushed § 87(2)(b)’s head against the trunk of the car. § 87(2)(b) was “very mad” at the time, but was not resisting. At this point, more than one officer searched § 87(2)(b). While he was being searched, the officers were asking, “Why didn’t you stop? Why is your front windshield tinted?” The officers also asked about the knife. When § 87(2)(b) exited the car, she was “hysterical.” She was “yelling and crying”, and asked the officers why they had stopped them.

Two unidentified officers began searching the car. The officers lifted up the floor mats underneath the front seats and searched the glove compartment and center console. After the officers searched the car, they handcuffed § 87(2)(b). § 87(2)(b) did not know why § 87(2)(b) was being arrested. § 87(2)(b) and § 87(2)(b) were placed in the van, and another patrol car arrived on the scene. § 87(2)(b) was arrested § 87(2)(b). § 87(2)(b)’s car windows are tinted and at the time, his license plate was held up with a tie rack. The back of the license plate was not flush against the car, but it was still visible.

Officer testimony

PO Eric Worobey (67th PCT)

On August 23, 2005, Officer Worobey was assigned to conditions auto in the 67th Precinct. Officer Worobey was working from 5:30 PM to 2:05 AM with Officer Rivera and Officer Islam. The officers were dressed in uniform and were assigned to a marked van (RMP #5411). Officer Worobey's memo book indicates that at 7:20 PM § 87(2)(b) and another individual were placed under arrest at Foster Avenue and East 29th Street (encl. 14a-b). Officer Worobey provided statements in § 87(2)(b) and § 87(2)(b)'s arrest reports. Officer Worobey was interviewed at the CCRB on January 11, 2006 (encl. 15a-b) § 87(2)(g)

Officer Worobey, Officer Rivera, and Officer Islam were performing routine patrol in the 67th PCT. The officers were traveling westbound on Avenue D when they observed a black Lexus driving southbound on Bedford Avenue. The vehicle made a left turn and began driving eastbound on Avenue D. Officer Worobey observed that the vehicle had tinted windows and, based on his experience, believed that the tints exceeded the legal limit. Also, Officer Worobey noticed that there was no NYS inspection sticker on the front windshield. The officers decided to pull the car over and they activated their turret lights and their "four way flashers" and made a U-turn on Bedford Avenue. The officers drove behind the Lexus but despite the lights and sirens, the motorist, later identified as § 87(2)(b) did not pull over. The officers followed § 87(2)(b) eastbound for approximately four avenues, and southbound for another two avenues. § 87(2)(b) finally pulled over on Foster Avenue and East 29th Street. Officer Worobey, Officer Islam, and Officer Rivera exited their van and approached § 87(2)(b)'s vehicle. § 87(2)(b) got out of his car and stood next to it with his hands out to his sides in a "T-like formation." § 87(2)(b) was not instructed to exit the vehicle and did so on his own accord.

As Officer Worobey approached § 87(2)(b) he observed something sticking out of his right carpenter jeans' pocket. Based on his experience, Officer Worobey determined that what he saw was part of a knife. Officer Worobey instructed § 87(2)(b) to keep his arms in the air. Officer Worobey then instructed § 87(2)(b) to put his arms behind his back and the officer then leaned § 87(2)(b) against his car. Officer Worobey proceeded to frisk § 87(2)(b) and take the knife out of his pocket. After inspecting the knife and realizing that it was a switchblade, Officer Worobey placed § 87(2)(b) in handcuffs. § 87(2)(b) complained and stated that he was being harassed. Officer Worobey denied pushing § 87(2)(b) into the back of the car, and specifically stated that he did not push § 87(2)(b)'s head.

§ 87(2)(b) who was sitting in the front passenger's seat of the vehicle, got out of the car and began asking the officers what they were doing. Officer Worobey stated that § 87(2)(b) was very upset and stated that the officer's actions constituted "harassment." Officer Worobey instructed § 87(2)(b) to stay in the vehicle. § 87(2)(b) ignored him and remained outside of the car. Officer Worobey then observed § 87(2)(b) reach inside the vehicle and remove a transparent sandwich bag containing marijuana and place it in his purse. Officer Worobey approached § 87(2)(b) and proceeded to handcuff her and place her under arrest § 87(2)(a) 160.50. Officer Worobey confiscated the marijuana and vouchered it as arrest evidence. After § 87(2)(b) was handcuffed, Sgt. Ward arrived on the scene and verified both arrests. Officer Rivera got into § 87(2)(b)'s car and drove it to the precinct. No officer searched § 87(2)(b)'s car on the scene.

PO Michael Rivera (67th PCT)

On August 23, 2005, Officer Rivera was assigned to conditions in the 67th PCT. Officer Rivera was working from 7:30 PM to 2:05 AM with Officer Islam and Officer Worobey. The officers were dressed in uniform and were assigned to a marked van. Officer Rivera does not have any entries in his memo book regarding this incident (encl. 16a-b). Officer Rivera was interviewed at the CCRB on February 8, 2006 (encl. 17a-b).

§ 87(2)(g) Officer Rivera stated that when § 87(2)(b) eventually did stop his car, he exited on his own accord. Officer Rivera approached the driver's side of the vehicle behind another officer. While § 87(2)(b) was standing next to his vehicle, he began to reach with his right hand for a metal clip that was positioned in the front of his waistband. Officer Rivera immediately grabbed § 87(2)(b)'s right arm and helped place him against the rear of the car. Officer Rivera then placed § 87(2)(b) in handcuffs. Whoever was standing in front of Officer Rivera frisked § 87(2)(b) and recovered a knife from his waistband.

When § 87(2)(b) exited the car she began yelling and screaming. § 87(2)(b) stated, "I'm going to sue you. You have no right to stop us." Officer Rivera escorted § 87(2)(b) to the van and § 87(2)(b) continued to scream. Officer Rivera did not interact with § 87(2)(b) and did not see any officer interacting with her in any capacity. § 87(2)(b) was placed under arrest, but Officer Rivera did not see which officer handcuffed her. Officer Rivera later learned that § 87(2)(b) was arrested § 87(2)(a) 160.50 § 87(2)(b). Officer Rivera was later told that the marijuana was in plain view. Officer Rivera stated that he did not search the car and was not aware of the car being searched on the scene. Officer Rivera drove § 87(2)(b)'s car back to the precinct.

PO Fakrul Islam (67th PCT)

On August 23, 2005 Officer Islam was assigned to conditions in the 67th PCT. Officer Islam was working from 5:30 PM to 2:05 PM with Officer Rivera and Officer Worobey. The officers were dressed in uniform and were assigned to a marked van (RMP # 5411). Officer Islam does not have any entries in his memo book regarding this incident (encl. 18a-b). Officer Islam was interviewed at the CCRB on February 6, 2006 (encl. 19a-b).

§ 87(2)(g). According to Officer Islam, Officer Worobey approached the driver's side of the car and Officer Rivera approached the passenger's side. Officer Islam approached the driver's side of the car behind Officer Worobey. The officers instructed § 87(2)(b) to get back in the car, but he did not respond. Officer Worobey observed something and stated that he was going to place § 87(2)(b) under arrest. At the time, Officer Islam did not know what Officer Worobey saw, but he later learned that Officer Worobey observed part of a gravity knife on § 87(2)(b)'s person. Officer Islam immediately assisted Officer Worobey in placing § 87(2)(b) in handcuffs by grabbing § 87(2)(b)'s hands. § 87(2)(b) did not resist and was placed in handcuffs without incident. Officer Islam then escorted § 87(2)(b) to the police van. As they were walking to the van, § 87(2)(b) voluntarily stepped out of the car. Apparently, Officer Worobey observed something else in the car or on § 87(2)(b)'s person, and placed her under arrest as well. Officer Islam was inside the van at the time, and did not know what Officer Worobey observed or why § 87(2)(b) was being placed under arrest. § 87(2)(b) was placed in the van and a supervisor was called to the scene. Sgt. Ward and his operator arrived at that location and verified both arrests. Officer Islam did not observe any officer searching § 87(2)(b)'s vehicle.

Officers not interviewed

§ 87(2)(g)

_____.

Police documentation:

Arrest reports

§ 87(2)(b) - § 87(2)(b) (encl. 11a-c)

§ 87(2)(b) was arrested § 87(2)(b)

_____. Officer

Worobey, the arresting officer, did observe § 87(2)(b) with a gravity knife in public view. No force was used during the arrest.

§ 87(2)(b) — § 87(2)(b) (encl. 12a-c)

§ 87(2)(b) was arrested § 87(2)(a) 160.50

No force was used during the arrest.

Property clerk's invoices — § 87(2)(b) and § 87(2)(b) (encl. 13a-b)

Officer Worobey vouchered a gravity switchblade and a Ziplock bag containing marijuana as evidence in connection with both arrests.

OCA records (encl. 21a-l):

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Complainant CCRB and criminal history:

§ 87(2)(b) has not filed any prior complaints with the CCRB (encl. 5). § 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Officer CCRB history:

Officer Rivera has been a member of the NYPD for five years and Officer Worobey and Officer Vazquez have both been members for two years. As of the date of this report, none of the officers have any substantiated CCRB cases on their records (encl. 2-4).

Conclusions and Recommendations

Undisputed facts:

On August 23, 2005 at approximately 7:20 PM, Officer Worobey, Officer Rivera, and Officer Islam pulled over § 87(2)(b) and § 87(2)(b) on Foster Avenue and East 29th Street. Officer Worobey frisked § 87(2)(b) and a knife was found on his person. § 87(2)(b) was handcuffed and arrested. § 87(2)(b) exited the car and she was arrested § 87(2)(a) 160.50.

Disputed facts:

According to § 87(2)(b) after § 87(2)(b) provided his license and registration, he was instructed to step out of the car. When he did, officers pushed him against the back of the vehicle. Officers proceeded to search the car and found marijuana in § 87(2)(b)'s purse. According to officer testimony, § 87(2)(b) was already outside of the car when they approached. They handcuffed him and leaned him against the back of the car. They did not push him or slam his head against the car. Officer Worobey observed § 87(2)(b) transferring marijuana from the car to her purse. The officers did not search the car on the scene.

Officer Identification:

Officer Worobey was identified from the arrest paperwork. Officer Islam and Officer Rivera were identified from the 67th Precinct's roll call. All officers acknowledged their participation in the incident during their CCRB interviews. Although § 87(2)(b) and § 87(2)(b) were unable to provide the names or sufficient descriptions of the officers, they did state that the officer who approached the driver's side window was the same officer who frisked § 87(2)(b) and pushed him against the car.

Credibility analysis:

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b). According to § 87(2)(b) the officers did not use their sirens or lights when they pulled them over. § 87(2)(b) § 87(2)(g) stated that the officers had their overhead lights on and they used their loud speaker to instruct him to pull over. § 87(2)(b) stated that when asked for his license and registration, § 87(2)(b) immediately handed it to the officers. According to § 87(2)(b) however, he was shuffling through papers and was unable to hand his license over to the officer before he was instructed to step out of the car. § 87(2)(b) stated that when he exited the car, he was frisked and then instructed to walk towards the back of the car. It was at that point that Officer Worobey grabbed him and then pushed him. § 87(2)(b) stated that the officer grabbed § 87(2)(b) as he was stepping out of the car. § 87(2)(b) stated that he was cooperative throughout the incident and did not resist. § 87(2)(b) stated that when she exited the car, she observed § 87(2)(b) struggling with the officers. Also, § 87(2)(b) stated that she was not screaming during the incident, but rather she was “talking loudly.” According to § 87(2)(b) however, § 87(2)(b) was “hysterical” and was “yelling and crying.”

§ 87(2)(g)

§ 87(2)(b) According to Officer Rivera, as the officers were approaching § 87(2)(b) he reached for the knife that was clipped to his waistband. § 87(2)(g) § 87(2)(b) Also, according to Officer Rivera, he initially observed the knife in § 87(2)(b)'s waistband and grabbed § 87(2)(b)'s arms. Officer Worobey, § 87(2)(g) stated that he instructed § 87(2)(b) to put his arms behind his back and eventually restrained him. Officer Rivera and Officer Islam did not witness § 87(2)(b) in possession of marijuana and could not verify that she was holding it in public and plain view.

Allegation A: Abuse of Authority: Officer Erik Worobey stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B: Abuse of Authority: Officer Michael Rivera stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation C: Abuse of Authority: Officer Fakrul Islam stopped the car in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) and § 87(2)(b) were driving on Foster Avenue when they were pulled over by a police van. The occupants of the van, Officer Worobey, Officer Rivera, and Officer Islam, all stated that they observed § 87(2)(b)'s vehicle in violation of several subsections of the Vehicle and Traffic Law. All three officers agreed that it was a collective decision to stop § 87(2)(b)'s car. Officer Worobey indicated that he observed § 87(2)(b)'s windows and believed that they were tinted beyond the legal limit. Also, Officer Worobey stated that he did not observe a NYS inspection sticker on § 87(2)(b)'s front windshield. Officer Islam also indicated that § 87(2)(b) was stopped because his windows appeared to be tinted beyond the legal limit. Officer Rivera stated that he observed § 87(2)(b) driving recklessly by changing lanes without signaling and by driving above the speed limit. § 87(2)(b) was eventually charged with reckless driving and operating a vehicle with illegally tinted windows and an improperly fastened license plate.

According to *Kamins' Search and Seizure*, “An automobile stop is reasonable when an officer has probable cause to believe that an individual has violated the Vehicle and Traffic Law” (encl. 1c). § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(g)

Allegation D: Abuse of Authority: Officer Erik Worobey frisked § 87(2)(b)

§ 87(2)(b) alleged that after being instructed to exit his car, Officer Worobey frisked him and recovered a knife that was clipped to his jeans on his waistband. According to Officer Worobey, § 87(2)(b) exited the car on his own accord and stood next to his car with his arms up in a “T-like formation.” Officer Worobey observed the metal clip on § 87(2)(b)’s waistband and, based on his experience, believed it to be a knife. Officer Rivera corroborated Officer Worobey’s statement and stated that he also observed the metal clip.

According to *Kamins’ Search and Seizure*, “An officer must have reasonable suspicion to believe a suspect has committed a crime *and* a reasonable suspicion that the suspect is armed and dangerous” (encl. 1d).

§ 87(2)(g)

Allegation E: Force: Officer Erik Worobey used physical force against § 87(2)(b)

Allegation F: Force: Officer Fakrul Islam used physical force against § 87(2)(b)

Allegation G: Force: Officer Michael Rivera used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after he was frisked, Officer Worobey instructed him to walk towards the back of his car. As he was walking, Officer Worobey grabbed him and pushed him against the car. An officer then pushed § 87(2)(b)’s head against the trunk. § 87(2)(b) stated that as § 87(2)(b) was exiting the vehicle, Officer Worobey grabbed him and then pushed him against the trunk. § 87(2)(b) stepped out of the car and observed § 87(2)(b) struggling with Officer Worobey. Two additional officers assisted Officer Worobey by holding his arms and wrists. According to Officer Worobey, after finding the knife, he instructed § 87(2)(b) to put his hands behind his back and then leaned him against the back of the car. Officer Worobey then placed him in handcuffs. Officer Islam stated that he assisted Officer Worobey by grabbing § 87(2)(b)’s arms while the officer placed him in handcuffs. According to Officer Rivera, when he observed the knife in § 87(2)(b)’s pocket, he grabbed § 87(2)(b)’s arms and placed him in handcuffs. The officers stated that they did not, at any point, push § 87(2)(b)’s head against the car. § 87(2)(g)

According to Patrol Guide procedure 203-11, regarding the use of force, “Only that amount of force necessary to overcome resistance will be used to effect an arrest” (encl. 1a-b) § 87(2)(g)

Allegation H: Abuse of Authority: Officers searched the car in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) and § 87(2)(b) alleged that after Officer Worobey found a knife of § 87(2)(b)’s person, unidentified officers searched the car for several minutes. According to § 87(2)(b) an officer found a

bag of marijuana that was in § 87(2)(b)'s pocketbook, which was located on the front passenger seat of the vehicle. § 87(2)(b) however, could not specify with any certainty where exactly the officers searched. § 87(2)(b) did not observe the officers recover the marijuana, and did not know exactly where they found it. Both § 87(2)(b) and § 87(2)(b) were unable to specify which officers searched the car. According to Officer Worobey, he observed § 87(2)(b) taking a plastic bag of marijuana out of the car and putting it in her pocketbook, which she was holding. Officer Worobey placed her under arrest and Officer Rivera drove the car to the precinct. An inventory search was conducted later on at the precinct, but no officer searched the car on the scene. Officer Islam and Officer Rivera stated that they did not search the car and they did not observe any officer search the car. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: